

proper service by personal service, or that the affidavit of service fails to comply with Code of Civil Procedure sections 415.10 and 417.10, and that the default and default judgment are void for lack of personal jurisdiction over her. The motion to quash the summons and to set aside the default and default judgment under Code of Civil Procedure sections 418.10 and 473.5 is **DENIED**.

4. 9:00 AM CASE NUMBER: C23-02467
CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.
***HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

The motion is **continued** to June 29, 2026 at 9:00 a.m. in Department 34 by stipulation of the parties.

5. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
***HEARING ON MOTION IN RE:**
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Geico Indemnity Company (erroneously sued as Geico Insurance)'s Motion to Set Aside Entry of Default ("Motion").

Defendant's Request for Judicial Notice is **GRANTED**. (Evid. Code § 452(d).)

Procedural History

Plaintiff filed her original complaint on March 11, 2024, naming Geico as Defendant. Geico appeared in the matter and demurred to the complaint. Plaintiff filed a First Amended Complaint on July 2, 2024. There were additional challenges to the pleadings resulting in, relevant here, Plaintiff's Fourth Amended Complaint (4AC) being filed on October 21, 2025. Thereafter, on November 21, 2025, Plaintiff sought and a default was entered against Geico.

Geico filed this Motion on December 8, 2025. Plaintiff opposes the Motion.

Analysis

Defendant makes several arguments as to why the default should not have been entered against it.

Timing

First, Defendant notes that the Proof of Service attached to the 4AC indicates that it was served on October 20, 2025, the day *before* it was signed and dated by Plaintiff and filed with the Court. Defendant contends Plaintiff could not have served the 4AC on them before it was signed and/or filed with the Court – indicating that the Proof of Service is unreliable.